



THE NEW CONSTITUTIONAL & ADMINISTRATIVE LAW

VOLUME ONE Constitutional Law

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ensured that those with political rights—at first, white propertied males and a few ‘civilised’ others,²⁸ later only white men and women²⁹—would possess virtually unrestrained power to shape the legal structure of South African society. The other part of the new state—the vast majority of the population—were characterised as existing outside of ‘civilised’ society and were subject to a system of tribal authority. For African people in the Union, political authority was exercised by chiefs who, since the advent of colonialism, were subordinates of the modern state whose head (the Governor-General) was designated as the supreme paramount chief.

In this divided state system, the adoption of parliamentary supremacy ensured that the white minority were politically empowered to manipulate the legal system to perpetuate their dominance over South African society. In Britain, the unchallenged power of Parliament to make law reflected the victory of democratic forces over the monarchy. By contrast, in South Africa parliamentary supremacy legalised the subjugation of the black majority in the name of democracy. In its jurisdiction of origin, the doctrine of Parliamentary supremacy was not a license to Parliament to act tyrannically. The British Parliament was kept in check by the fact that it is a representative of the electorate, of the people who elected it to power.³⁰ The British Parliament could therefore not legislate against the wishes of the people or against ‘the sentiment prevailing among the distinct majority of the citizens of a given country’.³¹ In the divided state created by the Union Constitution, the South African Parliament represented only the white minority. The majority of citizens had no vote with which to constrain or sanction Parliament and discourage it from passing unpopular or repressive measures.

(b) Ascendancy of Parliamentary supremacy—the constitutional crisis of the 1950s

As we have seen, although the Union Constitution followed the Westminster tradition in adopting parliamentary sovereignty, the legislature was not completely free of external restraints. Until passage of the Statute of Westminster by the British Parliament in 1931, the Colonial Laws Validity Act of 1865 continued in theory to restrict the sovereignty of the Union Parliament. After 1931, the South African Parliament remained bound, at least procedurally, by the entrenched sections of the Union Constitution.

²⁸ In the Transvaal and Free State provinces the franchise was limited to white males. In the Cape the franchise was extended to all males resident in the province who owned property of a certain value or earned a certain sum of money. In practice, this qualification excluded most black people. Natal had a similar qualified non-racial franchise. However, the right to vote of black voters had been significantly restricted in 1896. The non-racial franchises of the Cape and Natal colonies were preserved and protected by the entrenched sections of the Union Constitution.

²⁹ White women won the right to vote in 1930 in terms of the Women’s Enfranchisement Act 18 of 1930. The process of removing black voters from the voters’ roll began in 1936 and was completed in 1956. See, further, below 2.4(c) ‘The Franchise and the racial construction of citizenship’.

³⁰ P P Craig ‘Dicey: Unitary, Self-Correcting Democracy and Public Law’ (1990) 106 *Law Quarterly Review* 105, 108.

³¹ A V Dicey *Lectures on the Relation Between Law and Public Opinion in England during the Nineteenth Century* (1905) 55, quoted in Craig (note 30 above) 111.

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The significance of entrenchment was weakened by the removal of African voters from the common voters' roll in 1936.³² However, it was the constitutional struggle over the removal of coloured voters from the common roll that secured the dominance of Parliament over the Constitution. Believing that the Statute of Westminster had freed the South African Parliament from the procedural requirements of the entrenched clauses of the Union Constitution, in 1951 the National Party government introduced the Separate Representation of Voters Bill in Parliament. The purpose of the Bill was to remove coloured voters from the common voters' roll. As we have seen, to repeal or amend s 35 of the Union Constitution a Bill had to be passed by both Houses of Parliament sitting together (unicamerally) and agreed to at the third reading of the Bill by not less than two-thirds of the total number of members of both Houses. Lacking the necessary Parliamentary support to secure the required two-thirds majority, the Act was instead passed bicamerally and by a simple majority in each house.³³

When the validity of the Act was challenged, the Appellate Division in *Harris v Minister of Interior*³⁴ held that the entrenched provisions were still binding and that the court had the power to declare invalid any Act not passed in accordance with the provisions of the Constitution. The essence of the decision was that unless Parliament passed legislation (including a constitutional amendment) according to the procedures laid down in the Union Constitution, the Act passed could not be recognised as an Act of Parliament. Parliamentary supremacy meant that there could be no restrictions on the *substance* of any legislation that Parliament may pass. But this did not mean that the Constitution could not impose *procedural* restrictions. These so-called 'manner and form' restrictions served as 'rules of recognition' which are always needed to discover whether something is indeed legislation passed by Parliament. To say that the procedural restrictions were not binding on Parliament would have meant that there was no means by which the courts could identify what was and what was not an Act of Parliament, clearly an untenable situation. According to the Appellate Division, the court had the power under the Constitution to inquire whether, in passing a particular Act, 'Parliament' as defined in the Constitution, had functioned. Legislation could only be an 'Act of Parliament' if it had been passed by Parliament sitting bicamerally and voting by ordinary majority in the case of ordinary legislation, or sitting unicamerally and voting by two-thirds majority in the case of legislation amending or repealing the entrenched sections. If the body that had purported to pass an Act had not functioned as 'Parliament', then what it had produced could not be considered to be a valid 'Act of Parliament'.

Having been thwarted by the courts in its attempt to change the franchise, the government then introduced the High Court of Parliament Bill in 1952. The Bill

³² Representation of Natives Act 12 of 1936. See, further, 2.4(c)(iii) below.

³³ Separate Representation of Voters Act 46 of 1951.

³⁴ *Harris v Minister of Interior* 1952 (2) SA 428 (A).

was passed by Parliament as Act 35 of 1952, again by the ordinary bicameral procedures. The Act purported to override the authority of the courts by establishing a body called the 'High Court of Parliament' which would consist of every member of the House of Assembly and Senate. The Act conferred on this body the power to review and set aside any past or future judgment of the Appellate Division in which that court had declared an Act of Parliament to be invalid. The decision of the High Court of Parliament would be by majority vote. The High Court of Parliament was then summoned, and in due course declared the Appellate Division's decision in *Harris v Minister of the Interior* to be invalid and upheld the validity of the 1951 Voter's Act.

The High Court Act was struck down by the judges of the Appellate Division in *Minister of Interior v Harris*.³⁵ All five judges of Appeal delivered separate judgments but were unanimous in declaring the High Court of Parliament Act invalid. The court held that the 'High Court of Parliament' created by the Act was not a true court of law. Instead it was Parliament sitting under another name and purporting to do by a simple majority what Parliament could only do by a special majority (ie, to amend an entrenched section of the Constitution). While the first *Harris* case was decided on a procedural basis—only laws passed according to the correct parliamentary procedures may be recognized as law—the second *Harris* case involved a structural understanding of the distinction between the constitutional role of the legislature and that of the courts. It held that as a matter of substance Parliament could not, simply by renaming itself a 'court', make a decision that it was not empowered to make as Parliament.

The government's final and ultimately successful attempt to amend the franchise took place in two stages. The first step was to restructure the Senate by increasing the number of both nominated and elected Senators, and the basis for the election of Senators. The Senate Act 53 of 1955 (passed by the usual bicameral procedures) amended the Union Constitution so as to change the composition of the Senate, thereby ensuring that the governing party had the required two-thirds majority to amend the entrenched sections of the Union Constitution.³⁶ The practical result was that the old Senate of 48 members which had consisted of 29 government and 19 opposition supporters, was replaced by a new Senate with 89 members, of whom 77 supported the government and only 12 the opposition. This dramatic change in the balance of power in Parliament meant that the government was able to muster a two-thirds majority at a joint sitting, and it soon used its new-found strength to pass the South Africa Act Amendment Act 9 of 1956 by the unicameral procedure required by the entrenched sections. This Act repealed the entrenched voting rights in s 35 of the Constitution, amended

³⁵ *Minister of Interior v Harris* 1952 (4) SA 769 (A).

³⁶ Under the Union Constitution, Senators were elected on the basis of proportional representation by a province's Members of Parliament and members of the Provincial Legislature sitting as an electoral college. After the amendment, the election was by simple majority, which meant that the majority party in a province could appoint all the Senators for that province. On proportional representation see, further, Chapter 4 below.

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s 152 so as to make it applicable only to amendments of s 137 and validated the Voters Act.

The validity of the Senate Act and the 1956 South Africa Amendment Act was challenged in *Collins v Minister of the Interior*.³⁷ The basis of the challenge was that although in form the Senate Act merely provided for the restructuring of the Senate and therefore could validly be passed by the ordinary procedure, and although the Amendment Act had amended s 35 and s 152 in accordance with the entrenched procedure, in substance the two measures together constituted a single legislative scheme: The purpose and effect of the scheme was to amend ss 35 and 152 by Parliament sitting bicamerally. The case was heard by eleven judges of the Appellate Division,³⁸ and by a margin of ten to one the two Acts were declared valid. In one of the majority judgments, Centlivres CJ held that the motive behind the Acts was not something into which the court could enquire, and that as each Act had been passed in accordance with the procedures prescribed by the Constitution, they had to be accepted as being valid. As s 152 did not require Constitutional amendments restructuring the Senate to be passed by the entrenched procedure there was, according to Centlivres CJ, no reason to hold that the new Senate was not a real 'Senate' within the meaning of the Constitution.

The sole dissenting voice in the *Collins* case was that of Schreiner JA who found the Acts to be invalid on the ground that the Senate established by the Senate Act was not a 'House of Parliament' as contemplated in s 152 of the Constitution. The reason for his finding was that 'the parts of a scheme take their character from the whole'. Where a person takes steps A and B (which are by themselves entirely legal) in order to achieve object C (which is not legal), then steps A and B themselves become illegal because of the unlawful purpose for which they were performed. Although (as Schreiner JA conceded) it would in normal circumstances have been perfectly legal for Parliament to reconstitute the Senate, and for that Senate to participate in a repeal of s 35 and s 152, the reconstitution of the Senate by the Senate Act was not constitutional because it and the Amendment Act were done for the purpose of destroying the protection offered by the entrenched sections at a time when the government lacked the necessary two-thirds majority. According to Schreiner JA where s 152 empowered both Houses of Parliament sitting unicamerally to repeal the entrenched sections, the term 'Houses of Parliament' could not include a Senate constituted with the specific purpose of artificially creating the majority needed to repeal those

³⁷ *Collins v Minister of the Interior* 1957 (1) SA 552 (A).

³⁸ In terms of the Appellate Division Quorum Act 27 of 1955, eleven judges of appeal were to sit in cases in which the validity of an Act of Parliament was in question. This legislation made it necessary to appoint several new judges of appeal, which led to accusations that the government had engaged in 'court packing' (ie, appointing judges likely to give a decision that favours the government). But even if court packing did take place, it turned out to be unnecessary as the decision in the *Collins* case was by a ten to one margin, with judges who had found against the government in the *Harris* cases finding in its favour on this occasion. In *Prince v President, Law Society of the Cape of Good Hope* 2001 (2) SA 388 (CC) the Constitutional Court declared the quorum provision unconstitutional. This was because the provision purported to confer jurisdiction on the Appellate Division to enquire into the validity of an Act of Parliament whereas, under the interim Constitution, the Appellate Division had been expressly deprived of this jurisdiction.

sections, and that therefore the new Senate was not a 'House of Parliament' within the meaning of s 152.

The dismissal of the appeal in *Collins* marked the end of the constitutional crisis of the 1950s and a definitive victory of Parliamentary supremacy over the Constitution.³⁹

(c) Exclusion of judicial review

The rise of parliamentary supremacy reached its zenith in the battle over the Cape Franchise. By passing an amendment to the Constitution in 1956 which provided that '[n]o court of law shall be competent to enquire into or to pronounce upon the validity of any law passed by parliament' other than those effecting the surviving language clause, government was determined to secure Parliament's dominance over the courts. Prime Minister Verwoerd rejected calls from the Natal Provincial Council for the adoption of an entrenched Bill of Rights. The step was unthinkable, according to Verwoerd, as 'no suggestion was made as to how rights could be effectively guaranteed without sacrificing the sovereignty of Parliament'.⁴⁰

The passage of the Republic Constitution in 1961 further secured parliamentary supremacy. Section 59 of the new Constitution explicitly excluded the courts from substantive review and limited any judicial review over Parliament to legislation touching on the surviving entrenched clause that guaranteed the equality of English and Afrikaans.⁴¹ To emphasise this ascendancy, s 59(1) stated that 'Parliament shall be the sovereign legislative authority in and over the Republic, and shall have full power to make laws for the peace, order and good government of the Republic'.

Despite these obviously substantive constitutional criteria for the passage of legitimate laws (peace, order and good government) and their earlier resistance the courts recognised that the will of a racially exclusive Parliament was to be paramount. The crude logic of this unrestrained conception of parliamentary sovereignty is summed up in an early decision of the Appellate Division. In *Sachs v Minister of Justice*, Stratford ACJ stated that 'arguments are sometimes advanced which do seem to me to ignore the plain principle that Parliament may make any encroachment it chooses upon the life, liberty or property of any individual subject to its sway, and that it is the function of the courts of law to enforce its will'.⁴² This judicial perspective, justified by reference to the doctrine of parliamentary supremacy gave the apartheid legislature free reign in its attack

³⁹ Ironically, in terms of the Senate Act 53 of 1960, the Senate was again reconstituted. The number of nominated senators was reduced and the elected Senators were once more elected by means of proportional representation. The result of this was that the governing party surrendered its control over constitutional amendment of the entrenched sections, which by then it was safe to do, given that it had achieved its objective of disenfranchising the black population.

⁴⁰ E Kahn *The New Constitution*, supplement to Hahlo & Kahn (note 2 above) 2.

⁴¹ The clause was more a symbolic restraint than an effective constitutional entrenchment of equal language rights and relied in fact on a political consensus among whites. In effect, the growing de facto dominance of Afrikaans within the civil service undermined the official equality respected in the translation and reproduction of official government publications and legislation.

⁴² *Sachs v Minister of Justice* 1934 AD 11, 37.

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2.4 THE CONSTITUTION

(a) A divided Union

Formally, the Union was a single Union, but in reality the one hand was the white minority rule while the other was the black majority rule. The autocratic and authoritarian leaders protected the Boer Republic. Instead, Afrikaner nationalism was separated by the Union-Council and the

(b) Two for one

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⁴³ Dugard (note 2 above) 2.

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⁴⁶ R Davenport

⁴⁷ Ibid.

on the basic principles of equality and human dignity inherent in the common law. The doctrine's impact on human rights and what has been described as its 'debasement of the South African legal system' are now part of the history of apartheid.⁴³

2.4 THE CONSTRUCTION OF A RACIALLY DIVIDED STATE

(a) *A divided state*

Formally, the South Africa Act of 1909 brought together four settler colonies into a single Union of South Africa. In effect, however, it created a divided state. On the one hand, the Constitution granted the white minority parliamentary democracy while on the other it subjugated the majority of black South Africans to autocratic administrative rule. Excluded from the National Convention, African leaders protested against the refusal to extend the Cape Franchise to the former Boer Republics but were rebuffed as not representative of African society.⁴⁴ Instead, African society was presented as essentially 'traditional', to be governed separately by chiefs in a system of feudal hierarchy with the Governor-General-in-Council at its head.⁴⁵

(b) *Two forms of governance*

The origins of the divided state are to be found in the process of unification among the settlers of the four British colonies, which were to come together in the Union of South Africa in 1910. This process gained momentum after the establishment of the South African Native Affairs Commission (Langden Commission) in 1903.⁴⁶

Appointed with the object of arriving at a 'common understanding' in the formulation of native policy in the four colonies, the Langden Commission's Report developed a vision of a future South African state based on the territorial segregation of black and white 'as a permanent mandatory feature of public life'.⁴⁷ The Commission gave approval to the policy and practice of creating 'native reserves', distinct territories of exclusively African occupation governed not by democratic means but by administrative control. The Commission argued that this political and territorial segregation had a historical basis. It identified 'Natives' as having 'distinct rights' to the reserved lands as the 'ancestral lands held by their forefathers'. These tenure rights were then characterised as amounting to a form of group ownership under which the 'Tribal Chief' administers the land in 'trust' for the people. Finally, the chiefs were said to have transferred their sovereign rights—including their powers of administration over communal lands—to the Crown through a process of 'peaceful annexation'.

⁴³ Dugard (note 27 above) 36.

⁴⁴ A Ashforth *The Politics of Official Discourse in Twentieth-Century South Africa* (1990) 34.

⁴⁵ The term Governor-General-in-Council means the Governor-General acting on the instructions of the Executive Council (the Union cabinet).

⁴⁶ R Davenport *South Africa: A Modern History* (1977) 147–69.

⁴⁷ Ibid.